IHL Assignments 3.1–3.3 – Answers

Means and methods of warfare · Nuclear weapons · UN missions and IHL — based on the ICJ Nuclear Weapons Advisory Opinion (1996), the Declaration of President Bedjaoui, Labuda (2017), Gilder (2024), the ICRC opinion paper (2024) and the treaties themselves

Abbreviations. HR = 1907 Hague Regulations; GC = Geneva Convention; AP = Additional Protocol; IAC/NIAC = international/non-international armed conflict; CIHL = ICRC Customary IHL Study (2005); SGB = UN Secretary-General's Bulletin "Observance by United Nations forces of international humanitarian law" (ST/SGB/1999/13, 6 August 1999); Safety Convention = Convention on the Safety of United Nations and Associated Personnel (1994); OAG = organized armed group. **Note:** facts about the 2025–2026 Iran conflicts and the current status of UN missions should be checked against up-to-date sources before submission.

3.1 The regulation of specific weapons

Two approaches run through weapons law: (i) **use-based** treaties, which prohibit or restrict how a weapon may be used in armed conflict (classic "Hague law"); and (ii) **disarmament** treaties, which ban development, production, stockpiling, transfer (and use) at all times and require destruction of stocks. Underlying both are the two principles restated by the ICJ (Nuclear Weapons AO, para. 78): the prohibition of weapons causing **unnecessary suffering** to combatants (St Petersburg preamble; Art. 23(e) HR; AP I Art. 35(2)) and the prohibition of weapons that are **indiscriminate** by nature (AP I Art. 51(4)).

Treaty	(a) Scope of application	(b) Type of regulation	(c) Main protective rationale
St Petersburg Declaration (1868)	Wars between contracting parties only (*si omnes* clause) → IAC. Its rule is now customary in IAC and NIAC (CIHL Rule 78, anti-personnel exploding bullets).	Prohibition of **use**: projectiles under 400 grams that are explosive or charged with fulminating or inflammable substances.	**Combatants – unnecessary suffering**. Preamble: the only legitimate object of war is to weaken the military forces of the enemy; weapons that "uselessly aggravate the sufferings of disabled men, or render their death inevitable" are contrary to humanity.
Hague Declaration III (1899)	Wars between contracting powers (*si omnes*) → IAC. Customary in IAC and NIAC (CIHL Rule 77); war crime in IAC (Rome Statute Art. 8(2)(b)(xix)) and, since the 2010 Kampala amendment, NIAC (Art. 8(2)(e)(xv)).	Prohibition of **use** of bullets that expand or flatten easily in the human body ("dum-dum" bullets).	**Combatants – unnecessary suffering** (wounds larger than needed to put a soldier out of action).
Biological Weapons Convention (1971/72)	**At all times** ("never in any circumstances").	**Disarmament**: prohibits development, production, stockpiling, acquisition, retention and transfer; duty to **destroy** or divert stocks (Arts. I–III). Use is banned by the 1925 Geneva Protocol, and Review Conferences (1996) confirmed Art. I covers use; use is also prohibited by custom (CIHL Rule 73).	**Both**: biological agents cannot be controlled (indiscriminate) and cause extreme suffering – the Convention calls such use "repugnant to the conscience of mankind".

Treaty	(a) Scope of application	(b) Type of regulation	(c) Main protective rationale
ENMOD Convention (1976)	**At all times** between states parties: “military or any other hostile use” – covers armed conflict and hostile use outside it.	Prohibition of **use** of environmental modification techniques having **widespread, long-lasting or severe** effects as a means of destruction, damage or injury to another state party (Art. I). Note “or” (ENMOD) v. cumulative “and” in AP I Arts. 35(3)/55.	**The environment and civilians** (deliberate manipulation of natural processes – e.g. weather, earthquakes); not about combatants.
CCW (1980) + Protocols	Originally IAC only (CA2 situations and AP I Art. 1(4)). **Amended Art. 1 (2001)** extends the Convention and its Protocols to **NIAC** (CA3 situations) for states accepting it; Amended Protocol II (1996) already applied to NIAC. Protocol V largely applies **after** conflict.	Mainly **use** restrictions/prohibitions: **P I** (non-detectable fragments – ban on use); **P II**/Amended P II (mines, booby-traps – restrictions; some transfer limits); **P III** (incendiary weapons – ban on attacking civilians and on air-delivered incendiaries against military objectives within concentrations of civilians); **P IV** (1995, blinding lasers – ban on use **and transfer**); **P V** (2003, explosive remnants of war – clearance, recording, warning).	**Both**: P I and P IV protect **combatants** (unnecessary suffering); P II, P III and P V protect **civilians** (indiscriminate and lasting effects). Framework convention: further protocols can be added (CCW also hosts the talks on autonomous weapons).
Chemical Weapons Convention (1993)	**At all times** (“never under any circumstances”).	**Comprehensive**: prohibits **use**, development, production, acquisition, stockpiling, retention and transfer; destruction of stocks and production facilities; verification by the **OPCW**. Riot-control agents may not be used “as a method of warfare” (Art. I(5)).	**Both** – chemical weapons cause unnecessary suffering and are indiscriminate.
Anti-Personnel Mine Ban Convention (Ottawa, 1997)	**At all times**.	**Comprehensive**: never use, develop, produce, acquire, stockpile, retain or transfer; destroy stocks (4 years) and clear mined areas (10 years); **victim assistance**.	**Civilians** – mines are victim-activated and cannot distinguish; they keep killing long after conflicts end. *(Recent development: several European states bordering Russia announced withdrawal in 2025.)*
Convention on Cluster Munitions (2008)	**At all times**.	**Comprehensive** (same model as Ottawa): ban on use, development, production, acquisition, stockpiling, retention, transfer; destruction (8 years), clearance (10 years), victim assistance.	**Civilians** – wide-area effects at the time of attack and high failure rates leaving unexploded submunitions. *(Not ratified by the US, Russia, Ukraine or Israel.)*

Treaty	(a) Scope of application	(b) Type of regulation	(c) Main protective rationale
Arms Trade Treaty (2013)	**At all times** – regulates international **trade**, not use.	**Transfer** rules only: prohibits transfers violating UN arms embargoes or where the state knows the arms would be used for genocide, crimes against humanity, grave breaches, attacks on civilians or other war crimes (Art. 6); export assessment of an "overriding risk" of serious IHL/IHRL violations, including **gender-based violence** (Art. 7). No weapon is banned.	**Civilians** (and human rights victims) – it targets the **supply chain** of violations, reinforcing CA1 ("ensure respect").

Summary of (a)–(c)

- **(a) Scope**: the older **use-based** treaties (1868, 1899, original CCW) apply to **IAC** only, but their rules are now largely **customary in IAC and NIAC**; the CCW was extended to NIAC in 2001. The **disarmament** treaties (BWC, CWC, Ottawa, CCM) and the ATT apply **at all times**, including NIAC and peacetime; ENMOD applies to any hostile use between states parties.
- **(b) Type**: **use** prohibitions/restrictions – St Petersburg, Hague III, ENMOD, CCW and Protocols (P IV also bans transfer). **Comprehensive** bans on use + development, possession and transfer + destruction – BWC (use via 1925 Protocol and custom), CWC, Ottawa, CCM. **Transfer** regulation only – ATT.
- **(c) Rationale**: the 19th-century treaties protect **combatants** from unnecessary suffering; the modern humanitarian-disarmament treaties (Ottawa, CCM, CCW P II/III/V, ATT) mainly protect **civilians** against indiscriminate and long-lasting effects; BWC and CWC do both. The shift reflects the move of warfare into populated areas and the growing role of humanitarian organizations and civil society in law-making.

(d) Are combat drones inherently unlawful under IHL?

No. An armed drone (unmanned combat aerial vehicle) is a **weapons platform**, not a weapon type that IHL prohibits as such:

- **Not inherently indiscriminate**: drones can be directed at a specific military objective, and long surveillance (loitering), precision munitions and real-time video can actually **improve** distinction and precautions compared with manned aircraft or artillery (AP I Arts. 51(4), 57).
- **No unnecessary suffering**: the munitions fired (e.g. Hellfire missiles) are the same as from manned aircraft; the platform causes no special injury (AP I Art. 35(2)).
- **No specific treaty** bans them, and there is no customary prohibition – state practice uses them widely (US, Israel, Türkiye, Iran, Russia, Ukraine, non-state groups). The ICJ held that legality is not dependent on specific authorization (AO para. 52) and that IHL's principles apply to "all kinds of weapons … of the future" (para. 86).
- **Review duty**: states must assess new weapons, means and methods under **AP I Art. 36**.
- **The real legal problems lie in their use**: targeted killings far from active hostilities (geographical scope of NIAC; IHRL if no armed conflict – see the lex specialis reasoning in AO para. 25); "**signature strikes**" based on patterns of life that may assume "military-age males" are fighters, contrary to the presumption of civilian status (ICRC DPH Guidance, Rec. VIII); the **jus ad bellum** (strikes on foreign territory without consent); transparency and accountability; and the risk of lowering the threshold for

using force.

- **Autonomy**: a drone that selects and engages targets **without meaningful human control** raises a different question. Debates in the CCW Group of Governmental Experts and the UN General Assembly concern whether such autonomous weapon systems must be prohibited or regulated; the ICRC recommends prohibiting unpredictable and anti-personnel autonomous weapons.

Conclusion: drones are **lawful as such**; each **use** must comply with distinction, proportionality and precautions, and with the jus ad bellum and IHRL where applicable.

3.2 Nuclear weapons and attacks on nuclear sites

(a) Is attacking nuclear sites lawful under jus in bello? Does AP I membership matter?

General rules (all states, customary)

- A nuclear facility may be attacked only if it is a **military objective** – by its nature, location, purpose or use making an effective contribution to military action, and its destruction offering a definite military advantage (AP I Art. 52(2); CIHL Rule 8). A civilian nuclear power plant is **prima facie a civilian object**. A facility of a **weapons programme** (e.g. enrichment or weaponization sites) can more plausibly be a military objective in an ongoing IAC – but this depends on its actual contribution to military action, which is contested for facilities that are not yet producing weapons.
- Even when it is a military objective, the attack must respect **proportionality** – the expected release of radioactivity and its effects on civilians and the **environment** must be counted (AP I Art. 51(5)(b); AO para. 30) – and **precautions** (Art. 57).
- **CIHL Rule 42**: "**Particular care** must be taken if works and installations containing dangerous forces, namely dams, dykes and nuclear electrical generating stations, and other installations located at or in their vicinity are attacked, in order to avoid the release of dangerous forces and consequent severe losses among the civilian population."
- Other relevant rules: the prohibition of widespread, long-term and severe environmental damage (CIHL Rules 43–45); IAEA General Conference resolutions (e.g. 1985, 1990) declaring attacks on nuclear facilities devoted to peaceful purposes a violation of international law; IAEA safety principles (the "seven indispensable pillars" for nuclear safety in armed conflict, 2022, and the five principles for the ZNPP presented to the Security Council in May 2023).

If the attacking state is party to AP I – Art. 56 (special protection)

- "Works or installations containing dangerous forces, namely dams, dykes and **nuclear electrical generating stations**, shall not be made the object of attack, **even where these objects are military objectives**, if such attack may cause the release of dangerous forces and consequent severe losses among the civilian population."
- Special protection ceases for a nuclear power station **only** if it provides electric power in **regular, significant and direct support of military operations** and if attack is the **only feasible way** to terminate that support (Art. 56(2)(b)). Reprisals against such works are prohibited (Art. 56(4)); launching an attack knowing it will cause excessive losses is a **grave breach** (Art. 85(3)(c)). AP II Art. 15 contains a similar rule for NIAC (without exceptions).
- **Limit**: Art. 56 covers only **nuclear electrical generating stations** – not research reactors, enrichment plants or weapons facilities.

Application

- **Russia–Ukraine (ZNPP)**: both are parties to AP I, so **Art. 56** applies in full. The ZNPP has been under Russian occupation since March 2022; attacks on it, or military use of it, risk violating Art. 56, and the occupying power must also ensure its safety as part of public order and safety (Art. 43 HR). The IAEA's

presence on site supports compliance.

- **Israel/US–Iran (2025, 2026)**: neither Israel nor the US is party to AP I (Iran signed but did not ratify), so **Art. 56 does not apply** as treaty law; only customary rules bind – the weaker "particular care" rule (Rule 42) plus distinction, proportionality and precautions. Most targets (Natanz, Fordow, Isfahan) were **enrichment and conversion** sites rather than power stations, so even Art. 56 would not have covered them. The key in bello questions are whether they were military objectives and whether radiological and chemical risks were properly weighed.
- **Iraq (Osirak, 1981) and Syria (2007)**: research/suspected reactor sites, not covered by Art. 56. The Security Council condemned the Osirak attack as a clear violation of the UN Charter (Res. 487 (1981)) – illustrating that such attacks are often more problematic under the **jus ad bellum** (preventive self-defence) than under jus in bello. The two bodies of law must be assessed **separately**.

Answer: attacking a nuclear site is **not per se unlawful** under jus in bello, but it is heavily restricted. For AP I parties, **nuclear power stations** enjoy special protection even if they are military objectives; for non-parties, only the customary duty of particular care and the general targeting rules apply – a significant gap in protection.

(b) Does AP I apply to attacks with a nuclear weapon?

- At the 1974–77 Diplomatic Conference nuclear weapons were **not negotiated**. The US, UK and France (and later others, e.g. Belgium, Germany, Italy, the Netherlands, Spain) made **declarations/understandings** that the rules introduced by AP I were intended to apply to conventional weapons only and do not regulate or prohibit nuclear weapons.
- **ICJ (para. 84)**: AP I "in no way replaced the general customary rules applicable to all means and methods of combat including nuclear weapons"; all states are bound by those AP I rules that merely expressed **pre-existing customary law** (e.g. the Martens Clause, distinction, the ban on indiscriminate attacks, unnecessary suffering).
- **Result**: the **customary** rules codified in AP I apply to nuclear weapons for everyone. The **new** rules of AP I – especially the environmental provisions (Arts. 35(3), 55) and the prohibition of reprisals against civilians (Art. 51(6)) – are contested for nuclear weapons for states that made such declarations; for other parties they apply in full. The ICRC position is that AP I applies to all weapons.

(c) Are attacks with nuclear weapons allowed under IHL?

- **No specific prohibition or authorization** in treaty or customary law binding all states (AO, 2A and 2B). For the states parties to the **Treaty on the Prohibition of Nuclear Weapons (2017, in force 2021)**, use and threat are expressly prohibited – but no nuclear-armed state is party.
- Use must comply with the **general principles**: distinction (no weapons incapable of distinguishing), the prohibition of unnecessary suffering, proportionality, precautions, protection of the environment and neutrality (AO paras. 78–89, 2D).
- Given blast, heat and **radiation** that "cannot be contained in either space or time" (para. 35), use "**would generally be contrary**" to IHL (2E) and is "scarcely reconcilable" with its requirements (para. 95). Hypothetical exceptions argued by nuclear states (a low-yield weapon against warships on the high seas or troops in a desert, para. 91) are narrow and ignore escalation risks (para. 94).
- The Court could not conclude definitively for an **extreme circumstance of self-defence** when a state's survival is at stake (2E, 7–7). But as Bedjaoui stressed, this **non liquet** is not an authorization; and since jus in bello applies independently of jus ad bellum, the reason for fighting (self-defence, survival) cannot make an otherwise unlawful attack lawful.
- **Answer**: under IHL, a nuclear attack would be lawful only in extremely unlikely circumstances where all targeting rules are met; in practice almost any use against or near populated areas, or causing lasting

radiation and environmental harm, would be **unlawful**.

(d) Do you agree with the ICJ's Advisory Opinion? – A reasoned view

I **largely agree** with the Opinion's reasoning but **disagree with the second sentence of paragraph 2E**.

- **What the Court got right**: that IHL applies to nuclear weapons like any other weapon (para. 86); its clear restatement of the cardinal principles and their customary, "intransgressible" character (paras. 78–79); that ad bellum and in bello requirements are **cumulative** (paras. 42, 2D); that a threat is unlawful whenever the use would be (paras. 47–48, 78); the lex specialis approach to the right to life (para. 25); and the **disarmament obligation** (2F), which gives Art. VI NPT real legal content.
- **Why the Court's caution is understandable**: it could not ignore decades of **deterrence** practice and the opposition of nuclear states, which blocked a customary ban (para. 73); an advisory opinion declaring all use illegal might have been ignored by the very states it addressed.
- **Why paragraph 2E is problematic**: (i) it **mixes jus ad bellum and jus in bello** – the survival of a state is an ad bellum consideration that should not suspend in bello rules designed to apply equally to all parties; (ii) a **non liquet** sits uneasily with the Court's function, as Judge Higgins argued – the Court had the principles needed to answer; (iii) it risks being read as a loophole, which is exactly why Bedjaoui had to explain that it leaves no door "ajar".
- **My conclusion**: the Court should have held that the use of nuclear weapons is governed by IHL without exception and is unlawful whenever it violates distinction, unnecessary suffering or proportionality – which in practice means almost always – leaving self-defence to be assessed separately under the Charter. The TPNW (2017) shows that many states have since taken that step themselves.

3.3 UN missions and international humanitarian law

(a) Examples of each type of operation

Type	Example	Mandate
1. Peace operation (consent-based peacekeeping)	**UNFICYP** (Cyprus, since 1964); also **UNDOF** (Golan, since 1974); **UNIFIL** (Lebanon, since 1978)	UNSC Res. **186 (1964)** – with the consent of Cyprus, to prevent fighting and contribute to law and order; UNDOF: Res. 350 (1974) (observing the Israel–Syria disengagement); UNIFIL: Res. 425 and 426 (1978), expanded by Res. 1701 (2006).
2. Peace enforcement operation (robust, Chapter VII peacekeeping)	**MINUSCA** (CAR, since 2014); also **MONUSCO** (DRC) and its **Force Intervention Brigade**	MINUSCA: UNSC Res. **2149 (2014)**, Chapter VII, "all necessary means" to protect civilians; renewed e.g. by Res. 2301 (2016) ("proactive and robust posture"). MONUSCO: Res. 1925 (2010); Intervention Brigade: Res. **2098 (2013)** ("neutralize armed groups").
3. Enforcement operation (full-scale combat by states/coalitions)	**Gulf War coalition** (1991); also **Korea** (1950), **Libya** (2011)	UNSC Res. **678 (1990)** – authorizing member states to use "all necessary means" to expel Iraq from Kuwait. Korea: Res. 83 and 84 (1950); Libya: Res. **1973 (2011)** (protection of civilians and no-fly zone, "all necessary measures").

The legal framework: SGB (1999) and the Safety Convention (1994)

- **SGB s. 1.1**: the fundamental principles and rules of IHL apply to UN forces "when in situations of armed conflict they are **actively engaged therein as combatants**, to the extent and for the duration of their engagement". They apply "in **enforcement actions**, or in **peacekeeping operations** when the use of force is permitted in self-defence". Sections 5–9 list the rules (distinction, prohibited weapons and methods, treatment of civilians, detainees, wounded).

- **SGB s. 1.2**: the Bulletin "does not affect the **protected status** of members of peacekeeping operations under the 1994 Convention … or their status as **non-combatants**, as long as they are entitled to the protection given to civilians under the international law of armed conflict".
- The SGB applies to forces under **UN command and control**; troop-contributing states remain bound by their own IHL obligations; violations are prosecuted in **national courts** of the contributing state (s. 4). Coalitions **authorized** by the Council (type 3) are bound by IHL directly as states.
- **Safety Convention**: states must ensure the safety of UN and associated personnel, not make them the object of attack, and **criminalize** and prosecute or extradite for attacks (murder, kidnapping, violent attacks on premises and vehicles – Arts. 7, 9–15). **Art. 2(2)**: it does **not apply** to an operation authorized as an enforcement action under Chapter VII "in which any of the personnel are engaged as **combatants against organized armed forces** and to which the **law of international armed conflict** applies". **Art. 20**: nothing affects the applicability of IHL. (2005 Optional Protocol extends it to other UN operations, e.g. humanitarian and peacebuilding.)
- **Rome Statute Art. 8(2)(b)(iii)/(e)(iii)**: attacking peacekeepers is a war crime "as long as they are entitled to the protection given to civilians" (Labuda; Gilder); CIHL Rule 33.

(b) Confronted with a state's armed forces

- **Not engaged in hostilities** (e.g. UNIFIL in 2024): peacekeepers are **protected like civilians** (CIHL Rule 33; SGB s. 1.2) and covered by the Safety Convention. Deliberate attacks on them are war crimes; they are, however, exposed to **proportionate incidental harm** from lawful attacks nearby (Gilder). They remain bound by IHL's basic rules if they use force in self-defence.
- **Actively engaged as combatants** against a state's forces: the UN force (or its contributing states) becomes a **party to an IAC** – fighting between a UN force and a state is international in character. The SGB applies (bound by IHL), the members lose civilian-like protection and become **lawful targets**, and if captured are entitled to treatment in accordance with GC III. In an enforcement action the **Safety Convention does not apply** (Art. 2(2)) – their protection then comes from IHL (as combatants, e.g. POW status), not from the Convention.
- **Type 3 (coalitions)**: participating states are ordinary parties to an IAC with full IHL obligations (e.g. Gulf War 1991, Libya 2011).

(c) Confronted with an organized armed group

- If the confrontation reaches the **NIAC threshold** (organization of the group and intensity) – or, under the ICRC's **support-based approach**, if the UN force supports a party in a pre-existing NIAC through an official decision – the UN force becomes a **party to a NIAC**. The SGB applies; the ICRC 2024 paper notes that whether the UN, the contributing states or both are parties depends on **command and control**.
- Members actively engaged lose protection against direct attack. **Contested**: (i) whether the whole force becomes targetable for the duration of the conflict (ICRC: the force as a whole becomes a party) or only during each engagement (a "revolving door", which Labuda criticizes for breaking the equality of belligerents); (ii) whether **civilian** mission staff under the same UN emblem are affected.
- **Safety Convention gap**: Art. 2(2) excludes only operations governed by the law of **international** armed conflict. In a NIAC the Convention continues to apply – so attacks by an armed group on peacekeepers that would be lawful under IHL may still be **crimes** under the Convention. This "asymmetry" protects peacekeepers, but gives armed groups little incentive to respect IHL (they are prosecutable anyway, having no combatant immunity).
- Below the NIAC threshold, force by peacekeepers is governed by **IHRL** and the law-enforcement paradigm (right to life) – as Labuda shows for MINUSCA's "red line" at Bambari.

(d) MINUSCA and UNIFIL: peacekeeping or peace enforcement?

	MINUSCA (CAR)	UNIFIL (Lebanon)
Mandate	Res. 2149 (2014), renewed by Res. 2301 (2016) and later resolutions; **Chapter VII**; "all necessary means" to protect civilians, human rights and humanitarian access; reduce the threat of armed groups through a "**proactive and robust posture**"; force allowed in self-defence and "defence of the mandate".	Res. 425/426 (1978): confirm Israeli withdrawal, restore peace, help Lebanon restore authority. **Res. 1701 (2006)**: monitor the cessation of hostilities; protect civilians under **imminent** threat; ensure the area is not used for hostile activities; resist forceful obstruction of its mandate; protect UN personnel; freedom of movement. Based on **Lebanon's consent**; not expressly adopted under Chapter VII.
Practice	Offensive helicopter attacks on the FPRC; killing of its leader; "direct combat" (Labuda).	Passive: observation, reporting, liaison; did not engage Israel or Hezbollah in 2024 despite being fired upon (Gilder).
Qualification	**Peace enforcement** – robust Chapter VII peacekeeping, arguably drifting into **enforcement** and possibly a **party to a NIAC** with the FPRC.	**Peacekeeping** (consent-based peace operation), with robust language on paper but not used in practice; **not a party** – protected like civilians.

(e) Are the current IHL norms governing these missions sufficient? – A reasoned view

In my view, **no** – the basic principles are adequate, but the framework leaves important questions unresolved:

- **Who is the party?** The UN still resists being a "party" to an armed conflict, while contributing states are bound by different treaties (e.g. some are not party to AP I or AP II). There is no agreed rule on attribution between the UN and contributing states (the ICRC's command-and-control test is only an expert view).
- **Threshold and denial**: classification is objective, but the UN has strong incentives to deny it is a party (Labuda) – leaving uncertainty about whether IHL or IHRL governs robust operations and their "red lines".
- **Scope of loss of protection**: the SGB's formula ("to the extent and for the duration of their engagement") suggests a revolving door that breaks the **equality of belligerents**; and the shared UN emblem endangers **civilian** components.
- **Safety Convention v. IHL**: the Art. 2(2) exclusion fits IACs, not the NIACs in which most missions operate; peacekeepers remain "protected" under criminal law even when they fight.
- **Other gaps**: no clear legal basis for **detention** by peacekeepers; weak **accountability** (UN immunity; prosecution left to contributing states – also for sexual exploitation and abuse); a 1999 Bulletin never updated; and limited tools against **state** interference such as forced entry into UN bases (Gilder: inviolability under the 1946 Convention, not IHL).
- **What would help**: an updated SGB clarifying party status, the scope of targetability and detention; mandates that state explicitly when IHL applies; aligning the Safety Convention with NIAC realities; and stronger accountability mechanisms (e.g. hybrid courts such as the CAR Special Criminal Court). The principles of distinction and humanity are sufficient – their application to the UN as an unorthodox actor is not.

Key takeaways

- Weapons law follows two models: **use restrictions** (St Petersburg, Hague III, ENMOD, CCW – originally IAC, now largely customary in NIAC) and **comprehensive disarmament** (BWC, CWC, Ottawa, CCM – at all times); the ATT regulates **transfers**.
- Older treaties protect **combatants** (unnecessary suffering); modern ones mainly protect **civilians** (indiscriminate and lasting effects); BWC and CWC do both.
- **Drones are not inherently unlawful**: they are platforms; legality depends on each use (distinction, proportionality, precautions), plus jus ad bellum and IHRL; autonomy is the open frontier.
- Attacking nuclear sites is not per se unlawful but tightly restricted: for **AP I parties**, nuclear power stations are specially protected (Art. 56); for non-parties (Israel, US) only customary "particular care" (Rule 42) and general targeting rules apply; Art. 56 does not cover enrichment or research sites.
- **AP I and nuclear weapons**: its customary rules apply (ICJ para. 84); its new rules are contested because of nuclear states' declarations.
- Nuclear use is not specifically prohibited for all states (TPNW only for its parties) but "would generally be contrary" to IHL; the ICJ's non liquet on extreme self-defence is not an authorization and wrongly mixes ad bellum and in bello.
- UN forces are bound by IHL when actively engaged as combatants (SGB s. 1.1) and otherwise protected like civilians (SGB s. 1.2; CIHL Rule 33; Safety Convention; Rome Statute).
- Against a **state**, engaged UN forces are parties to an IAC and the Safety Convention ceases to apply (Art. 2(2)); against an **armed group**, they may be parties to a NIAC while the Safety Convention still applies – an unresolved tension.
- **MINUSCA** = peace enforcement (Res. 2149/2301, Chapter VII, robust), possibly a NIAC party; **UNIFIL** = consent-based peacekeeping (Res. 425/426, 1701), not a party.
- Current norms are **insufficient** on party status, scope of targetability, detention, the Safety Convention's NIAC gap and accountability.